

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ADEL OSMAN,

Plaintiff,

Index No.:

SUMMONS

-against-

Plaintiff designates
KINGS COUNTY
as the Venue and
place of trial.

THE CITY OF NEW YORK; MAYOR OF THE CITY OF
NEW YORK ERIC ADAMS; NYPD POLICE
COMMISSIONER KEECHANT SEWELL; NYPD
POLICE COMMISSIONER EDWARD CABAN;
NYPD CHIEF OF POLICE JEFFREY MADDREY;
NYPD POLICE OFFICER CHRISTIAN PEREZ
(BADGE No. 14888); and NEW YORK CITY POLICE
DEPARTMENT MEMBER DOES #1-4,

The basis of Venue is
that a substantial part
of the conduct giving
rise to this Complaint
occurred in Kings
County.

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to
serve a copy of your Answer on the plaintiff's attorney within 20 days after the service of this
Summons, or within 30 days after service of this Summons is complete if this Summons is not
personally delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the interest, costs and/or
disbursements of this action.

Dated: Brooklyn, New York
July 11, 2024

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

By: 
Maryanne K. Kaishian, Esq.

TO:

THE CITY OF NEW YORK

100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK ERIC ADAMS

100 Church Street
New York, NY 10007

NYPD POLICE COMMISSIONER KEECHANT SEWELL

(Former)
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD POLICE COMMISSIONER EDWARD CABAN

New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD CHIEF OF POLICE JEFFREY MADDREY

New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD POLICE OFFICER CHRISTIAN PEREZ (BADGE NO. 14888)

New York City Police Department
67TH Precinct
2820 Snyder Ave.
Brooklyn, NY 11226

-and-

NYPD DOES # 1 – 4.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

ADEL OSMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK; MAYOR OF THE CITY OF NEW YORK ERIC ADAMS; NYPD POLICE COMMISSIONER KEECHANT SEWELL; NYPD POLICE COMMISSIONER EDWARD CABAN; NYPD CHIEF OF POLICE JEFFREY MADDREY; NYPD POLICE OFFICER CHRISTIAN PEREZ (BADGE No. 14888); and NEW YORK CITY POLICE DEPARTMENT MEMBER DOES #1-4,

Defendants.

-----X

Case No.:

VERIFIED
COMPLAINT

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Plaintiff, ADEL OSMAN, by his attorneys, KAISHIAN & MORTAZAVI LLC, by MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the United States District Court for the Eastern District of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. At the time of the events giving rise to the instant Complaint, Plaintiff Adel Osman was a 19-year-old student and resident of Kings County, City and State of New York. On April 12, 2023, Mr. Osman was lawfully operating a legally registered vehicle when Defendant NYPD Members with the 67th Precinct in Kings County, including Defendant Christian Perez (Badge # 14888), stopped him without justification or cause. These NYPD Members falsely arrested, unlawfully searched, injured, and excessively detained Plaintiff as part of a pattern of abuse and harassment levied against him by members of the NYPD. Defendants detained Plaintiff for several

hours before releasing him with a traffic ticket, which was dismissed after Defendant Perez provided false and misleading testimony during the adjudication proceeding.

2. Mr. Osman now brings the instant case before this Court.

PARTIES

3. At all times mentioned herein, **PLAINTIFF, ADEL OSMAN**, was and is a resident of Kings County in the City and State of New York.

4. At all relevant times mentioned herein, **DEFENDANT CITY OF NEW YORK (“Defendant City” or “New York City”)**, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

5. **DEFENDANT NEW YORK CITY MAYOR ERIC ADAMS** was at all times relevant to this Complaint the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued individually and in his official capacity.

6. **DEFENDANT NYPD COMMISSIONER KEECHANT SEWELL** was, at all times relevant to this Complaint prior to June 13, 2023, the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers’ performance of their duties,

and constituted a City policymaker for whom the City is liable. She is sued individually and in her official capacity.

7. **DEFENDANT NYPD COMMISSIONER EDWARD CABAN (“Defendant Caban”)**, at all times relevant to this Complaint after June 13, 2023, was and is the Police Commissioner of the NYPD. As Police Commissioner, Defendant Caban, personally and/or through his authorized delegates, at all relevant times, had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers’ performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued individually and in his official capacity.

8. **DEFENDANT NYPD CHIEF OF DEPARTMENT JEFFREY MADDREY** was at all times relevant to this Complaint the Chief of Department of the NYPD who had policymaking authority over the Department. At all relevant times, as Chief of Department, Defendant Maddrey had primary responsibility for NYPD operations—that is, for the police response on the street. Within the paramilitary structure of the NYPD, all NYPD uniformed members of the service were obligated to obey any lawful order given by him. He is sued individually and in his official capacity.

9. **DEFENDANT NYPD OFFICER CHRISTIAN PEREZ (“Defendant Perez”)**, at all times relevant to this complaint, was a police officer employed by and acting within the scope of his employment with the NYPD. Defendant Perez was and is assigned to the NYPD’s 67th Precinct in Kings County.

10. The true names and identities of **DEFENDANT NYPD MEMBERS JOHN OR JANE DOE #1-4** are currently unknown to Plaintiff. They are referred to herein collectively as “Defendant NYPD Does,” or, when referred to collectively with Defendant Perez, as “Defendant

NYPD Members.” At all times hereinafter mentioned, these Defendant NYPD Does were employed by the City of New York as members of the NYPD and are believed to have been assigned to the NYPD’s 67th Precinct in Kings County.

11. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

12. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

13. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

14. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

15. At all times relevant herein, as set forth more fully below, Defendants’ actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

16. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the

NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

17. Each individual Defendant is sued in her or his individual and official capacities.

JURISDICTION, VENUE, and GML COMPLIANCE

18. Venue is proper in Kings County Supreme Court as the majority of the conduct complained of herein occurred in Kings County, City and State of New York.

19. Plaintiff timely served Notices of Claim on the municipal Defendant within ninety (90) days of the accrual of the claims complained of herein and complied with all conditions precedent to commencing an action under New York State law, including those pursuant to GML § 50.

20. Plaintiff's request for damages exceeds the jurisdiction of all lower courts.

21. Mr. Osman was examined pursuant to GML §50-H on December 28, 2023.

22. At least thirty days have elapsed since service of Plaintiff's Notice of Claim and adjustment and payment thereof has been neglected and/or refused.

23. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State Law.

STATEMENT OF FACTS

24. At the time of the events giving rise to this Complaint, Plaintiff Adel Osman was an 19-year-old student and resident of Kings County, City and State of New York.

25. The conduct by Defendants giving rise to this claim arose on or about April 12, 2023 at approximately 08:00 PM, at or near the intersection of Winthrop St. and Utica Ave. in Kings County, City and State of New York.

26. At the above approximate date and time, Mr. Osman was operating a legally purchased vehicle bearing active, unexpired temporary plates with a valid New York State-issued

driver's license when he was stopped by Defendant NYPD Members, believed to include Defendant PO Perez (Badge # 1488), without cause.

27. Mr. Osman provided all requested documents and complied with all orders.

28. Defendant NYPD Members ordered Mr. Osman to exit the vehicle without cause.

29. Defendant NYPD Members informed Mr. Osman that his vehicle was to be searched.

30. When Mr. Osman stated that Defendant NYPD Members did not have his consent to search his vehicle, at least one NYPD Member Doe informed him, in sum and substance, "In that case, you're coming with us."

31. Defendants, including Defendant Perez, placed Mr. under arrest without cause in retaliation for his lawful refusal to consent to a warrantless search of his vehicle, and transported Mr. Osman to the 67th Precinct in Kings County.

32. At least one individual among these Defendant NYPD Members applied overly tight handcuffs to Mr. Osman's wrists, causing pain and swelling. Defendants refused to loosen these handcuffs despite Mr. Osman's repeated requests.

33. Defendant NYPD Members proceeded to search Mr. Osman's vehicle without cause, justification, or consent.

34. Defendant NYPD Does # 1 – 4 and/or Defendant Perez damaged the interior of Mr. Osman's newly purchased vehicle, including the glove compartment, during this unlawful search, forcing Mr. Osman to expend costs to repair his vehicle.

35. No illegal items were recovered.

36. Defendant NYPD Members falsely informed Mr. Osman that he had been arrested because the plates affixed to Mr. Osman's vehicle were invalid. This was false.

37. Defendant NYPD Member Doe # 1 stated to Mr. Osman at the 67th precinct that

there was never, in fact, any issue with the validity of the plates.

38. The vehicle was legally registered and the affixed plates were valid.

39. Mr. Osman was never charged with this offense.

40. Nevertheless, Defendants forced Mr. Osman to remain in custody until at approximately 12:00 AM on April 13, 2023, while Defendants attempted to gather evidence to justify Mr. Osman's arrest and/or detained Mr. Osman based upon ill will and/or delayed his unlawful detention for delay's sake.

41. Defendant NYPD Members repeatedly attempted to interrogate Mr. Osman over his invocation of his rights, including his right to counsel.

42. Mr. Osman was released with a Traffic Violations Bureau ticket for VTL § 402 (1)(B)(I), executed by Defendant Perez and falsely alleging that Mr. Osman's temporary plates were dirty and/or covered.

43. Defendant NYPD Members induced an action against Mr. Osman based on false information provided by NYPD Respondents to the New York State Department of Motor Vehicle's Traffic Violations Bureau under ticket number B23M005518.

44. Mr. Osman pled not guilty to the traffic infraction and a hearing was conducted before a Traffic Violations Bureau administrative judge in Kings County on February 20, 2024.

45. Defendant Perez provided testimony during this hearing.

46. Defendant Perez falsely alleged the basis of the stop as both a parking violation and, elsewhere in his testimony, as related to Plaintiff traveling northbound in a bus lane, neither of which was true.

47. Under questioning by Counsel, Defendant Perez further refused to state whether Plaintiff had been placed under arrest, or why, as Plaintiff had not been accused of any crime.

48. The presiding administrative judge determined that Defendant Perez had failed to

establish cause for issuing the violation against Mr. Osman and dismissed the matter in its entirety, thus terminating the matter in Plaintiff's favor.

49. Respondents' conduct caused Mr. Osman to sustain physical injuries including to the glove compartment and interior of his vehicle.

50. Respondents' conduct further caused Mr. Osman to sustain emotional and psychological damages, including post-traumatic stress, anxiety, fear, and humiliation, the effects of which are ongoing. The full extent of Mr. Osman's injuries is not yet known.

51. Furthermore, this conduct by Defendant NYPD Members is part of a pattern of retaliatory harassment and abuse against Mr. Osman, who has filed previous claims against Defendants for similar conduct including false arrest and unlawful search and seizure, including conduct undertaken pursuant to baseless vehicular stops by members of the NYPD's 67th Precinct. *See Osman v City of New York, et al.* (514785/2024) (Kings County); *see Osman v City of New York, et al.*, 1:24-cv-01093 (NCM) (RML) (E.D.N.Y.).

52. Defendants continue to engage in retaliatory and harmful conduct targeting Plaintiff for false arrest and harassment.

Damages

53. Defendants' conduct subjected Mr. Osman to lost income, deprived him of his property, and forced him to expend costs, including to repair his vehicle.

54. Defendants forced Mr. Osman to miss classes and/or to fall behind in his studies.

55. Defendants forced Mr. Osman to experience anxiety related to operating his vehicle and/or leaving his home for fear of being arrested without any justification or cause.

56. Defendants' conduct has caused Mr. Osman serious pain, suffering, and injuries, including injuries to his wrists.

57. Defendant's conduct has caused Mr. Osman mental anguish in addition to pecuniary damages.

58. The full extent of Mr. Osman's injuries and damages is not yet known.

FIRST CLAIM FOR RELIEF

Unlawful Search and Seizure

Against Defendant NYPD Members Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

59. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

60. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing them to search or seize any Plaintiff or his property, was unreasonable, and was done without privilege or lawful justification.

61. Plaintiff did not consent to any search and was conscious of his confinement by Defendants.

62. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

63. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; interfered with his right to security and privacy; and/or otherwise damaged and injured Plaintiff.

64. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF**Excessive Force*****Against Defendant NYPD Members Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution***

65. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

66. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

67. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

68. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF**Violations of Plaintiff's Due Process Rights*****Against All Defendants Pursuant to 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution***

69. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

70. Defendants City, Defendant Adams, and Defendant Sewell designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of his Due Process rights described elsewhere herein.

71. Defendants collectively and individually denied and/or frustrated Plaintiff's Due Process rights and deprived Plaintiff of liberty and property without due process of law.

72. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

73. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City and Policymakers Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiffs' Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution

74. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

1. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

2. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to:

- a. Permitting NYPD officers to provide false testimony during official proceedings;
- b. Arresting individuals accused of charges to custodial arrest in violation of CPL § 150.20(1); and
- c. Engaging in impermissible searches and seizures during street encounters, including in violation of the Court's directives in *Floyd, et al. v. City of New*

York, 08-CV-1034 (AT), *Ligon, et al. v. City of New York, et al.*, 12-CV-2274 (AT), and *Davis, et al. v. City of New York, et al.*, 10-CV-0699 (AT). Plaintiff incorporates these matters by reference.

75. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;
- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Adams and Defendant Sewell, and other policymaking officials;
- d. Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

FIFTH CLAIM FOR RELIEF

False Arrest

Against All Defendants Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

76. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

77. Defendants unlawfully restricted Plaintiff's movement and deprived Plaintiff of his liberty without a lawful warrant and without probable cause.

78. The facts available to the NYPD Defendants at the time of Plaintiff's arrest failed to support the charge against him.

79. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

80. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

81. All charges against Mr. Osman were dismissed.

SIXTH CLAIM FOR RELIEF

Excessive Detention

Against All Defendants Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

82. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

83. Plaintiff was held in NYPD custody for approximately four (4) hours by NYPD Defendants without any justification or cause.

84. This detention violated Plaintiff's right to be free from continued detention and was predicated upon false allegations by NYPD Defendants.

85. Defendants' conduct in continuing to detain Plaintiff was motivated by Defendants' ill will and/or in an attempt to gather additional evidence to justify Plaintiff's arrest and/or delay for delay's sake.

86. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,

psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

87. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

SEVENTH CLAIM FOR RELIEF

Malicious Prosecution

Against Defendant Perez Pursuant to 42 U.S.C. 1983 and Plaintiff's Rights Under the Second, Fourth and Fourteenth Amendments to the United States Constitution

88. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

89. Defendant instituted or caused the claim against Plaintiff to be instituted without any probable cause.

90. Defendants provided false information to further the prosecution of Plaintiff by the New York City Traffic Violations Bureau.

91. Defendant Perez's motive in instituting the action was malicious, and the prosecution of Plaintiff was terminated in his favor when the Kings County District Attorney dismissed the charges against him, thus dismissing the charge against Plaintiff.

92. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of his liberty and his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

93. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

EIGHTH CLAIM FOR RELIEF

Failure to Train and/or Supervise

Against Defendants City and Policymakers Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

94. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

95. Defendant City, and its policymakers named herein, failed to train and supervise the Defendant NYPD Members.

96. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Osman' injuries.

97. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.

98. Defendants know that NYPD members, such as Defendant NYPD Members, are certain to regularly encounter situations such as those described herein—including the police approach and/or arrest and/or vehicular search of Black men—through the course of their employment.

99. Defendants knew that there is a history of wrongful conduct in these scenarios by NYPD Members.

100. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

101. Defendants, including Defendant Perez, had a demonstrated history of prior wrongful stops and/or false testimony and/or disciplinary action taken for patrol-related violations during the course of their employment with the NYPD.

102. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations,

coerced confessions, and physical and emotional injuries. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

103. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

104. The harms suffered by Plaintiff are the direct result of Defendants' failures.

NINTH CLAIM FOR RELIEF

Negligent Screening, Hiring, and Retention

Against Defendants City and Policymakers Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

105. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

106. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Mr. Osman' injuries.

107. Defendant City and its policymaker agents knew that the individual Defendants had a propensity for the conduct giving rise to Mr. Osman's injuries.

108. Defendants failed to adequately screen, hire, or retain employees in consideration of such employees' recognizable propensity for harm.

109. Such documented history of Defendants' willingness to lie and/or misrepresent facts while under oath and/or otherwise cause harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

110. Rather than removing or disciplining NYPD members who have provided non-credible testimony to courts, policymaker Defendants have continued to employ and empower

such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

TENTH CLAIM FOR RELIEF

First Amendment Retaliation

Against NYPD Defendants Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution

111. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

112. Defendants imposed restrictions on such protected speech and/or conduct that violated Plaintiff's First Amendment rights, including, but not limited to, in unlawfully seizing and searching Plaintiff, in subjecting Plaintiff to excessive force, in selectively enforcing laws and regulations against Plaintiff, in subjecting Plaintiff to Defendants' harmful policies, and in otherwise violating Plaintiff's rights and engaging in the acts and omissions complained of herein.

113. Defendants further engaged in retaliation against Plaintiff for engaging in speech and/or conduct protected by the First Amendment, including, *inter alia*, his conduct in:

- a. Declining to provide consent for a warrantless search of his vehicle;
- b. Lawfully inquiring as to the cause of his stop and detention; and
- c. Lodging complaints concerning prior harmful acts and ongoing harassment against Plaintiff by members of the NYPD.

114. Defendants engaged in the acts and omissions complained of herein in retaliation for Plaintiff's protected speech and/or conduct.

115. Defendants engaged in the acts and omissions complained of herein in order to prevent Plaintiff from continuing to engage in such protected speech and/or conduct.

116. Defendants engaged in the acts and omissions complained of herein in order to prevent and/or discourage Plaintiff from engaging in similar protected conduct in the future.

117. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who implemented them subjected Plaintiff to violations of his First Amendment rights.

118. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment-based claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—with malice.

119. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment retaliation claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—in response to the perceived viewpoint and/or message expressed by Plaintiff.

120. Upon information and belief, Defendants did not subject other others similarly situated to Plaintiff in terms of their conduct and/or its potential public ramifications to the conduct, policies, practices, and/or customs complained of herein.

121. Plaintiff suffered actual chill, including in that Plaintiff was prevented and/or deterred from or impeded in participating in protected conduct on the date of and after the incident, including his right to be lawfully present in public spaces and/or to associate with neighbors and members of his community; and/or suffered adverse effects on his protected speech and/or conduct; and/or otherwise suffered some concrete harm(s).

122. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and

otherwise participated in detaining and assaulting Plaintiff subjected Plaintiff to the violations of his First Amendment rights.

123. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

ELEVENTH CLAIM FOR RELIEF

The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure Against Defendants City and NYPD Members Pursuant to New York City Administrative Code Title 8, Chapter 8 (§ 8-801, et seq.)

124. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

125. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

126. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

127. The NYPD Defendants, including Defendant Stosch, Defendant Casimir, Defendant Guarrera, and all individually named NYPD Defendants, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

128. Pursuant to § 8-802, et seq., NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

129. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

130. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

131. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

132. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

TWELFTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

133. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

134. As a result of the conduct described herein, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

135. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

I. Violations of the New York State Constitution

136. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I §§ 11 and 12 of the New York State Constitution.

137. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 11 and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

II. False Arrest

138. By the actions described above, the police officials described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so.

139. Plaintiff was conscious of the confinement and it was without his consent.

140. Defendants levied false allegations against Plaintiff to wrongfully seize, detain, and arrest him.

141. Not only were Defendants' allegations false, but the charges themselves did not permit Plaintiff's custodial arrest.

142. Even if Defendants were to claim they possessed cause to believe that Mr. Osman had committed an alleged traffic infraction, NYPD Defendants did not have the lawful authority to arrest Plaintiff under the New York State Criminal Procedure Law (C.P.L.) § 150.20(1)(a).

143. The C.P.L. mandates that summonses are issued for offenses other than violent felonies, sexual offense allegations, charges that may result in the issuance of an order of protection, and certain other charges specified under C.P.L. §§ 70.02, 150.20, and other provisions.

144. Furthermore, Mr. Osman did not personally qualify for any of the circumstantial exceptions to the C.P.L. forbidding custodial arrest for minor offenses. Mr. Osman not have any active warrants, he provided his true legal identity and even presented his valid identification upon Defendants' request, he was not on probation or parole, and did not present a danger to himself or others, nor was he alleged to.

145. Defendants did not have the lawful authority to arrest Plaintiff and/or search Plaintiff and his personal belongings having accused him only of a traffic infraction under the Vehicle and Traffic Law, regardless of its validity.

146. All charges against Mr. Osman were dismissed.

III. False Imprisonment and Unreasonable Detention

147. By the actions described above, the Defendants described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so. Plaintiff was conscious of the confinement, and it was without his consent.

IV. Assault and Battery

148. Defendants committed assault within the meaning of New York common law against Plaintiffs by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

149. The force utilized by Defendants was unreasonable and intentional, and this force caused significant injury to Plaintiff.

150. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

151. Defendants did thereby inflict assault and battery upon the Plaintiff.

V. False Arrest

152. By the actions described above, the police officials described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so.

153. Plaintiff was conscious of the confinement and it was without his consent.

154. Defendants levied false allegations against Plaintiff to wrongfully seize, detain, and arrest him.

155. Not only were Defendants' allegations false, but the charges themselves did not permit Plaintiff's custodial arrest.

156. Even if Defendants were to claim they possessed cause to believe that Plaintiff's license plate was dirty and/or partially obstructed, the NYPD Defendants did not have the lawful authority to arrest Plaintiff under the New York State Criminal Procedure Law (C.P.L.) § 150.20(1)(a). The alleged infraction is not an arrest-eligible charge.

157. The C.P.L. mandates that summonses are issued in lieu of custodial arrest for offenses other than violent felonies, sexual offense allegations, charges that may result in the issuance of an order of protection, and certain other charges specified under C.P.L. § 150.20(1), *et seq.*

158. Furthermore, Plaintiff did not personally qualify for any of the circumstantial exceptions to the C.P.L. forbidding custodial arrest for minor offenses. Plaintiff did not have any active warrants, he provided his true legal identity, presented a valid driver's license upon Defendants' request, he was not on probation or parole, complied with all lawful orders, and did not present a danger to himself or others.

159. Defendants did not have the lawful authority to arrest Plaintiff and/or search Plaintiff and his personal belongings, having accused him only of a non-criminal violation.

160. The matter against Plaintiff terminated in his favor on February 20, 2024, when it was dismissed pursuant to a hearing.

VI. Fabrication of Evidence

161. Defendants were investigating officials in this matter.

162. Defendants knowingly fabricated evidence likely to influence a finder of fact and forwarded this information to prosecutors.

163. As a result of this fabrication, Plaintiff suffered deprivations of his life, liberty, and/or property and suffered significant injuries.

164. These deprivations include: Plaintiff's detention in the NYPD's custody for approximately four (4) hours, deprivation of and damage to his vehicle, and Plaintiff's mandated appearance for an administrative proceeding that was determined in his favor.

VII. False Imprisonment and Unreasonable Detention

165. By the actions described above, the Defendants described above did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so.

166. Plaintiff was conscious of the confinement, and it was undertaken without his consent.

VIII. Excessive Force

167. Defendants' use of excessive force against Plaintiff was unjustified, objectively unreasonable, and clearly intended as punishment when taking into consideration the facts and circumstances that confronted Defendants.

168. This conduct caused Plaintiff physical injury and emotional anguish, and Defendants are liable to Plaintiff for this conduct and its resulting injuries.

IX. Negligence

169. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

X. Conversion

170. Defendants damaged Plaintiff's property without cause or justification and forced him to expend costs to repair the same.

XI. Negligent Infliction of Emotional Distress

171. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear.

XII. Negligent Hiring, Training, and Supervision

172. Upon information and belief, Defendant City supervised and trained the police officials described above and did so in a negligent manner resulting in the harms described.

173. At all times relevant herein, Defendants were employed by, and acting in the scope of their employment with, Defendant City. Defendant City should have known that Defendant NYPD Members had a propensity for the conduct causing Plaintiff's injuries.

174. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

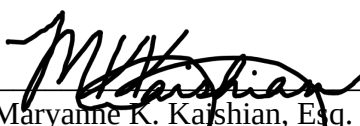
CONCLUSION AND DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;

- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. §1988, New York State Civil Rights Law, the New York City Administrative Code, and New York State common law; and
- v. Such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
July 11, 2024

By: 
Maryanne K. Kaishian, Esq.
KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff
55 Washington Street, Ste. 508
Brooklyn, New York 11201
T: (347) 662-2421
E: mk@kaishianlaw.com

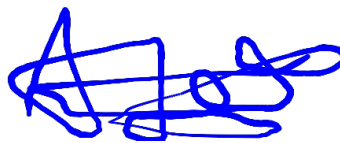
PLAINTIFF VERIFICATION

STATE OF NEW YORK)
 ss.:
 COUNTY OF KINGS)

ADEL OSMAN, the Plaintiff in the above action, affirms the following under penalties of perjury:

1. I am the Plaintiff in the above matter, *Adel Osman v. City of New York et al.*
2. I am over 18 years old and I am a resident of Kings County, City and State of New York.
3. I have read the attached Complaint, dated **JULY 11, 2024**, and the same is true and to my own knowledge except as to matters therein alleged to be on information and belief, and as to those matters, I believe them to be true.

Dated: Brooklyn, New York
 July 11, 2024



ADEL OSMAN

STATE OF NEW YORK)

SS.

COUNTY OF KINGS)

On the 11th day of JULY in the year 2024, before me, the undersigned notary public, personally, by electronic means approved by New York State in accordance with my licensure as an electronic notary, appeared ADEL OSMAN, personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that they executed the same in their capacity(ies), and that by thier signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.

Notarized online using audio-video communication

Maryanne K Kaishian
 Online Notary Public
 State of New York
 Kings County
 Commission #: 02KA0015799
 Commission Expires: 11/07/2027



Notary Public